

23STLC04408 23STLC04408

County: los-angeles

Division: Civil Law and Motion

Department: 25

Hearing date: 2026-07-16

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Case Number: 23STLC04408 Hearing Date: July 16, 2026 Dept: 25

HEARING DATE: Thurs., July 16, 2026 JUDGE /DEPT: Eisenman/25

CASE NAME: Aspire

General Insurance Company v. Ross

COMP. FILED: 07-12-23

CASE NUMBER: 23STLC04408

NOTICE: OK

PROCEEDINGS: MOTION

TO SET ASIDE AND VACATE JUDGMENT

MOVING PARTY: Defendant Okeem Smith Ross

RESP. PARTY: Plaintiff Aspire General Insurance
Company

MOTION TO

SET ASIDE AND VACATE DEFAULT AND DEFAULT JUDGMENT

(Code Civ. Proc., §§ 473(d), 473.5)

TENTATIVE RULING:

The

Court DENIES Okeem Smith Ross's motion to set aside the default and default

judgment entered against him.

The

Judicial Assistant will give notice.

SERVICE:

☒ Proof of

Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address

(CCP §§ 1013, 1013a) OK

☒ 16/21 Court

Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed

July 2, 2026 ☐

Late ☐ None

REPLY: Filed

July 7, 2026 ☐ Late ☐ None

ANALYSIS:

Aspire General Insurance Company obtained a default judgment against Okeem Smith Ross. Ross now moves to have the judgment and underlying default set aside under either Code of Civil Procedure section 473, subdivision (d)—because the service was improper—or Code of Civil Procedure section 473.5—because proper service did not result in actual notice.

Start with Code of Civil Procedure section 473, subdivision (d). After Aspire made diligent attempts to serve Ross by other methods, this Court granted an application for publication. Aspire then filed proof of publication in the Southwest Wave, demonstrating that publication was made at least once a week for four successive weeks in February and March 2025. (See Code Civ. Proc., § 415.50 [service can be done in this way when it appears to the court that the defendant cannot with reasonable diligence be served in another manner].)

Nowhere does

Ross's motion dispute the validity of the publication. He argues only that "[t]he [p]roof of [s]ervice appears inaccurate and contains irregularities, including alleged service by mail at an address where [Ross] does not receive mail." Ross never explains what the purported irregularities are, or why an "alleged service by mail" is relevant to Aspire's service by publication. Without any real explanation of what was supposedly wrong with the service in this case, Ross cannot successfully attack the judgment as void under section 473, subdivision (d).

To prevail under Code of Civil Procedure section 473.5, Ross must demonstrate that, despite proper service, he did not receive actual notice in time to defend the action—and that his failure to answer was not the result of avoiding service or of his inexcusable neglect. (Id. § 473.5, subds. (a), (c); see *Rios v. Singh* (2021) 65 Cal.App.5th 871, 885 [burden of proof is on the party invoking section 473.5].) There is no evidence going to either of those points.

Aspire, on the other hand, presented evidence that it attempted to serve Ross personally at 912 W. 66th Street, Los Angeles, California 90044 before it obtained an order to serve by publication. That is the same address that Ross has placed on his moving papers, but when Aspire attempted to serve him personally at that address, an occupant told its process server that no one with Ross's name lived there.

And all of that to one side, Ross fails to attach a proposed answer as required by Code of Civil Procedure section 473.5, subdivision (b).

So section 473.5 also offers Ross no relief from the default judgment in this case.

Ross advances several other arguments in his motion, but if anything, they go to the merits of the underlying dispute. They do not go to whether a default and default judgment were entered appropriately.

The Court DENIES Ross's motion to set aside the default and default judgment entered against him.

The Judicial Assistant will give notice.